[BDSA Reg. 2 (Formerly NPA Reg. 2); Amendment 5, of May 9, 1958]

BDSA REG. 2—BASIC RULES OF THE PRIORITIES SYSTEM

REG. 2, AMDT. 5—LIMITATION ON USE AND DISPOSITION OF MATERIALS ACQUIRED WITH PRIORITIES ASSISTANCE

This amendment is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this amendment, consultation with industry representatives has been rendered impracticable because this amendment applies to all trades and industries.

This amendment affects BDSA Reg. 2 (formerly NPA Reg. 2) as amended by amendment 2 dated June 1, 1954, and amendment 4 dated January 11, 1957, by amending paragraph 17 of said regulation in the following respects. List B of said regulation is deleted. Persons who acquire materials with a rating or a specific authorization or a directive of BDSA are required to use, so far as possible, such materials, or the products into which such materials are incorporated, to fulfill other priority orders to the extent that such materials or products cannot be used for the purpose for which priority assistance was given. In certain cases, cancellations of priority ratings on unfilled rated purchase orders are required. Special rules relating to use and disposition of primary nickel are eliminated, and this material is made subject to the general rules relating to use and disposition of materials.

Section 17 of BDSA Reg. 2 (formerly NPA Reg. 2) dated March 23, 1953, as amended by amendment 2 dated June 1, 1954, is hereby amended to read as follows:

Sec. 17. *Use or disposition of material acquired under this regulation.* (a) Any person who gets material with a rating or through a specific authorization or a directive of BDSA must, if possible, use or dispose of it (or of the product into which it has been incorporated) for the purpose for which the assistance was given. However, material obtained with any DO rating may be used to fill any DX rated order. Physical segregation is not required as long as the restrictions applicable to any specific lot of material or product are observed with respect to an equivalent amount of the same material or product.

(b) When a material acquired with a rating or through a specific authorization or directive of BDSA, or when a product into which such material has been incorporated, can no longer be used for the purpose for which the priority assistance was given, the following rules apply:

(1) To the extent that such material or product can be used to fill other orders then on hand which are accompanied by a rating or a specific authorization or directive of BDSA, and with respect to which such holder has not already received other material of the same kind by the use of priority assistance for the purpose of filling such other orders, it must be so used.

(2) To the extent that such material or product can be used for the purpose specified in subparagraph (1) of this paragraph but where material of the same kind to fill such other orders has been ordered by the use of priority assistance and has not been received, it must be so used, and the provisions of section 12 (b) apply.

(3) To the extent that such material or product cannot be used for the purpose and in the manner specified in subparagraphs (1) and (2) of this paragraph, the holder of such material or product may use it himself or dispose of it, unless otherwise ordered or directed by BDSA.

List B of BDSA Reg. 2 and the footnote to list B are deleted.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. 2154)

This amendment shall take effect May 9, 1958.

BUSINESS AND DEFENSE SERVICES ADMINISTRATION,
H. B. MCCOY,
Administrator.

[F. R. Doc. 58-3615; Filed, May 13, 1958; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1633]

[1119031]

CALIFORNIA AND NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 4203 OF APRIL 14, 1925, WHICH WITHDREW LANDS IN AID OF CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 4203 of April 14, 1925, which withdrew for classification the public lands within such of the following-described areas described in the act of Congress approved February 20, 1925 (43 Stat. 952) as were not then parts of any national forest

MOUNT DIABLO MERIDIAN

T. 37 N., R. 1 E.,
Sec. 1.
Ts. 38, 39, 40, 41, 42, 43 and 44 N., R. 1 E.
T. 45 N., R. 1 E.,
Secs. 19, 20, 29, and 30.
Ts. 37, 38, 39, 40, 41 and 42 N., R. 2 E.
T. 37 N., R. 3 E.
Sec. 1, N½;
Secs. 3, 4, 5, 6, 9, 10, 15, and 16.
Ts. 38, 39 and 40 N., R. 3 E.
T. 22 N., R. 4 E.,
Secs. 1, 12, and 13.
T. 23 N., R. 4 E.
T. 37 N., R. 4 E.,
Sec. 6, N½.
T. 38 N., R. 4 E.,
Secs. 6, 7, and 8.
T. 39 N., R. 4 E.,
Secs. 30 and 31.
Ts. 40 and 41 N., R. 4 E.
T. 20 N., R. 6 E.,
Secs. 1, 2, 3, 10, 11, 12, 13, 14, 15, 22, 23, 24, 25, 26, 27, 34, 35, and 36.
Ts. 26 and 27 N., R. 6 E.
Ts. 20, 21, 26 and 27 N., R. 7 E.
Ts. 21 and 27 N., R. 8 E.
T. 17 N., R. 9 E.,
Secs. 13, 24, 25, and 36.
T. 18 N., R. 9 E.,
Secs. 28 and 29.
T. 24 N., R. 9 E.,
Secs. 10, 11, 16, 22, 23, and 24.
T. 27 N., R. 9 E.,
Secs. 34, 35, and 36.
T. 14 N., R. 10 E.,
Secs. 1, 12, 13, 24, and 25.
T. 15 N., R. 10 E.,
Secs. 13, 24, 25, and 36.
T. 16 N., R. 10 E.,
Secs. 1, 2, 11, 13, 23, 24, 25, 26, 27, and 29.
Ts. 17 and 18 N., R. 10 E.
T. 23 N., R. 10 E.,
Sec. 1, N½.
T. 24 N., R. 10 E.,
Secs. 19, 28, 29, and 36.
T. 26 N., R. 10 E.,
Secs. 31, 32, and 33.
Ts. 14, 16, 17, 22, 23 and 24 N., R. 11 E.
T. 29 N., R. 11 E.,
Secs. 25 to 36, inclusive.
T. 10 N., R. 12 E.,
Secs. 1, 2, 3, 10 to 15, inclusive, 22 to 29, inclusive, 32 to 36, inclusive.
T. 11 N., R. 12 E.,
Secs. 25 to 29, inclusive, 32 to 36, inclusive.
Ts. 22 and 28 N., R. 12 E.
T. 29 N., R. 12 E.,
Secs. 26 to 35, inclusive.
T. 8 N., R. 13 E.,
Secs. 1, 2, 3, 10, 11, 12, 13, 14, 15, 22, 23, 24, 25, 26, 27, 34, 35, and 36.
Ts. 9, 10, 11, 21, 22 and 23 N., R. 13 E.
T. 4 N., R. 14 E.,
Secs. 1, 2, 11, 12, 13, 14, 23, 24, 25, and 26.
T. 5 N., R. 14 E.,
Secs. 1, 2, 11, 12, 13, 14, 23, 24, 25, 26, 35, and 36.
T. 6 N., R. 14 E.,
Secs. 1, 2, 3, 4, 9 to 16, inclusive, 21 to 28, inclusive, 33 to 36, inclusive.
Ts. 7 and 8 N., R. 14 E.
T. 20 N., R. 14 E.,
Secs. 9, 16, 21 to 24, inclusive.
T. 21 N., R. 14 E.,
Secs. 5, 6, 7, 8, 17, 18, 19, 20, 29, 30, 31, and 32.
T. 22 N., R. 14 E.,
Secs. 29, 30, 31, and 32.
T. 23 N., R. 14 E.,
Secs. 7, 16 to 21, inclusive, 28, 29, 30, and 33.
T. 2 N., R. 15 E.,
Secs. 1 to 12, inclusive.
Ts. 18, 19 and 20 N., R. 15 E.
T. 2 N., R. 16 E.,
Secs. 2 to 10, inclusive, 15, 16, and 21.
Ts. 18, 19 and 20 N., R. 16 E.
T. 25 N., R. 16 E.,
Sec. 15, N½;
Sec. 16.
Ts. 18, 19 and 20 N., R. 17 E.
T. 12 N., R. 18 E.,
Secs. 3 to 11, inclusive, 14 to 23, inclusive, 26 to 34, inclusive.
T. 13 N., R. 18 E.,
Fractional secs. 31 and 32 in California;
Secs. 1, 2, 3, 9 to 16, inclusive, 21 to 27, inclusive, 34, 35, and 36 in Nevada.
Ts. 14 and 15 N., R. 18 E., in Nevada.
T. 17 N., R. 18 E., Nevada,
Secs. 4, 5, and 6.
T. 18 N., R. 18 E., California and Nevada.
T. 13 N., R. 19 E., Nevada,
Secs. 5, 6, 7, 8, 17, 18, 19, 20, 29, 30, 31, and 32.
T. 14 N., R. 19 E., Nevada,
Secs. 4, 5, 6, 7, 8, 9, 16, 17, 18, 19, 20, 21, 28, 29, 30, 31, 32, and 33.
T. 15 N., R. 19 E., Nevada,
Secs. 4, 5, 6, 7, 8, 9, 16, 17, 18, 19, 20, 21, 28, 29, 30, 31, 32, and 33.